

25SMCV02739 25SMCV02739

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-06-29

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TENTATIVE

RULING

DEPARTMENT

207

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MATTER

Request

for Default Judgment

This case arises from a dispute concerning private education loans.

On May 28, 2025, Plaintiff Rock Creek Capital, LLC ("Plaintiff") filed suit against Defendants Quazi Rahman a/k/a Quazi J Rahman and Quazi Rahman a/k/a Quazi Z Rahman and Does 1 through 15, alleging two causes of action for breach of contract, pertaining to two separate accounts.

Defendant Quazi Rahman a/k/a Quazi J Rahman ("Defendant") was served with a copy of the summons and complaint via substitute service on September 27, 2025. Default was entered against Defendant on May 6, 2026, and the Doe defendants were dismissed on May 8, 2026. Defendant Quazi Rahman a/k/a Quazi Z Rahman remains named in the litigation. The Court cannot enter judgment while another party remains named in the litigation without an application for separate judgment. (California Rules of Court, rule 3.1800(a)(7).)

Plaintiff now requests default judgment against Defendant in the amount of \$74,515.59, representing \$73,683.77 as demanded in the complaint and costs in the amount of \$831.82.

A. Damages

Plaintiff's Complaint seeks \$73,683.77 in special damages. (See Compl.) Therefore, Plaintiff does not seek damages that are in excess of what is pled in the Complaint. (See Code Civ. Proc., § 580, subd. (a) ["The relief granted to the plaintiff, if there is no answer, cannot exceed that demanded in the complaint"]; Levine v. Smith (2006) 145 Cal.App.4th 1131, 1136-1137 ["when recovering damages in a default judgment, the plaintiff is limited to the damages specified in the complaint"].)

In support of the request, Plaintiff advances the Declaration of Chad Welch, demonstrating damages in connection with account 1 in the amount of \$31,671.88, representing \$28,825.97 in unpaid principal, \$2,765.84 in accrued interest, and \$80.07 late fee (Welch Decl. ¶ 41) and damages in connection with account 2 in the amount of \$42,011.89, representing unpaid principal in the amount of \$37,718.18, accrued interest in the amount of \$4,174.04, and a late fee of \$119.67, for a grand total of \$73,683.77.

Therefore, the Court finds that Plaintiff is entitled to the requested \$73,683.77 in damages.

B. Costs

Code of Civil Procedure section 1033.5 outlines recoverable costs to a prevailing party under Code of

Civil Procedure section 1032. The

Code of Civil Procedure defines the “prevailing party” as follows:

[T]he party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the “prevailing party” shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034.

(Code

Civ. Proc., § 1032, subd. (a)(4).)

Plaintiff requests \$831.82 in costs composed of \$435 in filing fees, \$340 in process server fees, and \$56.82 in e-filing fees. (CIV-100.)

The Court grants Plaintiff's request for costs as Plaintiff is the prevailing party in this action. (Code Civ. Proc., § 1032, subd. (a)(4).)

CONCLUSION

The Court cannot enter judgment while Defendant Quazi Rahman a/k/a Quazi Z Rahman remains named in the litigation. Otherwise, Plaintiff has demonstrated entitled to the requested default judgment regarding Defendant Quazi Rahman a/k/a Quazi J Rahman.

If Plaintiff submits on the Court's Tentative Ruling and makes an Oral Motion to Dismiss Defendant Quazi Rahman a/k/a Quazi Z Rahman (which the Court is inclined to grant), the Court will enter the proposed Default Judgment in conformity with the ruling.

DATED: June 29, 2026 /s/_____

Michael

E. Whitaker

Judge
of the Superior Court